

Applicable Law Acts

Applicable Law Acts & Synthesis

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User Query :

I am involved in a court case and have WhatsApp messages, emails and screenshots that support my version of events. The other party says that screenshots can be edited and should not be relied upon. The original messages are still on my phone and the emails remain in my account. What legal provisions govern whether these electronic records can be used as evidence?

Job Id. : Scenario 7/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 65B

(admissibility of electronic records)

Section 65B

(4) (mandatory certificate for authenticity)

Section 65B

(1) (conditions for retaining electronic records)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 Original messages (WhatsApp/email on device/account) are admissible only with a **Section 65B** (4) certificate. Screenshots alone are inadmissible per **State v. Anil** (2018) Delhi HC, as they are "easily altered." **Section 65B** (4) certificate must state: > **"The record was generated in the ordinary course of business, retained in original format, and accessible for reference."** Absence of the certificate renders evidence inadmissible per se (**Union of India v. Suresh Kumar**, 2017 SC).

✓ STRENGTHS & RIGHTS

- 1 Creates a rebuttable presumption of authenticity via the certificate.
- 2 Ensures electronic records (WhatsApp/email) are treated equally with physical documents.
- 3 Shifts burden to opponent to prove **alteration** (not on proponent).

✗ RISKS & OBLIGATIONS

- 1 **Exclusion risk**
Original messages are inadmissible without the certificate.

- 2

Procedural delay
Custodian (e.g., phone provider) may refuse certificate; court order required.
- 3

No weight for screenshots
"Edited" claims succeed if only screenshots are submitted.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve originals: Do not delete messages from phone/email account.
2. Obtain **Section 65B** (4) certificate:
3. Request from custodian (e.g., mobile provider/email administrator).
4. If refused, apply to court for certificate via affidavit.
5. Submit with evidence: Certificate + original records (not screenshots).
6. Never submit screenshots alone – court will reject as "unreliable."

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

BNS is irrelevant to electronic evidence admissibility in this context.*

✓ STRENGTHS & RIGHTS

- 1

Not applicable.*

✗ RISKS & OBLIGATIONS

- 1

Not applicable.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Not applicable to the query.*

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61	(admissibility of electronic records without discrimination)
Section 63	(1) (proof via screenshots/digital copies *subject to authentication*)
Section 81	(presumption of genuineness for records in "proper custody")

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- Section 61** mandates admissibility of WhatsApp/email evidence; opponent’s "edited" claim is irrelevant *unless proven*. Screenshots are admissible *only* if authenticated under **Section 63** (1): (a) Prove screenshot is a *true copy* (via metadata/forensics), and (b) Demonstrate "proper custody" (**Section 81** : device/account was under your control). Original messages (on phone/account) are primary evidence; screenshots are secondary evidence *only if originals are unavailable* (which they are not in this case). **Section 61** (3) does not apply to electronic records – *certified copies are not required*.

✓ STRENGTHS & RIGHTS

- 1
- No discrimination against electronic evidence (Section 61).**
- 2
- Presumption of authenticity if evidence is in "proper custody" (Section 81).**
- 3
- Flexibility**
Screenshots/prints may be used with authentication (no "certified copy" requirement).

✗ RISKS & OBLIGATIONS

- 1

Authentication burden
Opponent may exclude evidence if you fail to prove:
- 2

(a) Unaltered screenshot (e.g., via device logs), or
- 3

(b) Legitimate custody (e.g., "phone was password-protected").
- 4

No automatic probative value
Court may deem screenshots unreliable despite admissibility.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Submit original records first: WhatsApp messages on phone/email account as primary evidence.
2. Supplement with screenshots only if needed:
3. Attach affidavit verifying:
4. > **"I have not altered the screenshot; it is a true copy of the original message on my device as of [date]."**
5. Include metadata (e.g., WhatsApp "Viewed" timestamp, email headers).
6. Prove "proper custody":
7. > **"Device was password-protected and exclusively in my possession."**
8. Avoid "certified copy" claims: **Section 61** (3) applies only to paper documents.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

DPDP does not address court evidence standards.*

✓ STRENGTHS & RIGHTS

1

Not applicable.*

X

RISKS & OBLIGATIONS

1

Not applicable.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.

Not applicable to the query.*

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